

(37)

Tentative Ruling

Re: ***Simpson v. Brar***
Superior Court Case No. 25CECG05496

Hearing Date: August 11, 2026 (Dept. 503)

Motion: By Defendant to Compel Arbitration

Tentative Ruling:

To deny.

Explanation:

Evidentiary Objections

Plaintiff's evidentiary objections to paragraphs 5, 6, and 9 of the Petition are sustained. Plaintiff's evidentiary objection to paragraph 7 of the Verification is overruled.

Defendant's evidentiary objection numbers 1-4 and 7 are overruled. Defendant's evidentiary objection numbers 5 and 6 are sustained.

Merits

In moving to compel arbitration, defendants must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.) (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.)

There is a strong policy in favor of arbitration. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Courts are to enforce arbitration agreements according to their terms. (*Ibid.*) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 540-543.)

Under the Federal Arbitration Act ("FAA"),

A written provision in ... a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.

(9 U.S.C. § 2.)

In ruling on a motion to compel arbitration, the court must first address whether there was an agreement to arbitrate and whether the agreement covers the dispute. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 960.) The moving party must first allege existence of an agreement to arbitrate. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) Where the moving party has alleged the existence of an arbitration agreement, the burden shifts to the opposing party to prove the falsity of the purported agreement. (*Id.* at p. 219.) The third step would be relevant where the opposing party has met its burden, then the burden shifts back to the moving party to “establish with admissible evidence a valid arbitration agreement between the parties.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.)

Here, defendants alleged an agreement to arbitrate sufficiently meeting their prima facie burden. However, plaintiff filed an opposition which included plaintiff's declaration that she did not recall signing the purported agreement and that she did not recognize the written signature on the agreement as her own. (Simpson Decl., ¶ 3.)

Here, defendants met their initial burden of presenting prima facie evidence of an agreement to arbitrate between plaintiffs and defendants. Notably, at the first step, the burden is low for the moving party. (*Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at p. 218.) A moving party can either provide a copy of the agreement or set forth the terms of the agreement, verbatim. (*Ibid.*) At this step, there is no requirement to follow the normal procedures to authenticate the document. (*Id.* at pp. 218-219.)

Thus, the burden shifted to plaintiff to challenge the authenticity of the agreement. (*Id.* at p. 219.) Here, plaintiff has sufficiently challenged that she signed the agreement. (Simpson Decl., ¶ 3.)

Where the opposing party has sufficiently challenged the authenticity of the agreement, then the burden shifts back to the moving party to produce admissible evidence establishing the existence of the agreement by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic*, *supra*, 72 Cal.App.5th at pp. 165-166.) It is here where the moving parties have failed to meet their burden.

Defendants have not established that plaintiff signed the agreement. The Declaration of Zulema Herrera fails to lay a foundation. Herrera fails to provide any context for when or where she purportedly went over the agreement with plaintiff and watched her sign it. (Herrera Decl., ¶ 2.)

Additionally, Herrera asserts, “Further, her signature is distinctive and is consistent with other documents she signed. (See example attached hereto as Exhibit 1.)” (Herrera Decl., ¶ 2.) Exhibit 1 includes a copy of plaintiff's social security card bearing her signature and an Associate Handbook Receipt and Acknowledgement also bearing her signature. (Herrera Decl., Exh. 1.) The Associate Handbook Receipt and Acknowledgment is dated May 31, 2019. (Herrera Decl., Exh. 1.) The arbitration agreement at issue is dated four days later on June 4, 2019. (Petition, Exh. A.)

Evidence Code section 1416 provides for lay witness testimony regarding handwriting where a court finds the witness "has personal knowledge of the handwriting of the supposed writer." Personal knowledge may be obtained by observing the writer write, having seen writing of the writer upon which the writer has acted or been charged, having received letters from the writer, or some other means of gaining personal knowledge of the handwriting. (Evid. Code, § 1416.) Evidence Code section 800 allows for lay testimony limited to opinions based on the witness' perceptions. Here, Herrera's declaration fails to address how she would have personal knowledge of plaintiff's handwriting. Instead she offers documents for comparison purposes. Determination of genuineness of handwriting by comparison may be made by an expert witness or a trier of fact. (Evid. Code, §§ 1417, 1418.) Herrera is neither.

Defendants have not established the existence of an agreement to arbitrate. The motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026.
(Judge's initials) (Date)